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CASE NAME: Dreams to Reality Investment v. General Motors LLC

Defendant General Motors' Motion for Summary Judgment, or in the Alternative, Summary Adjudication

TENTATIVE RULING

The Court GRANTS Defendant General Motors' Motion for Summary Judgment. The Court will sign the proposed Order. The Court directs Defendant to submit a proposed judgment of dismissal for the Court's review and signature within five calendar days of this order.

Defendant is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On May 16, 2025, plaintiff Dreams to Reality Investment (Plaintiff) filed this action against defendant General Motors LLC (Defendant) and Does 1 through 10, alleging causes of action for violation of the Song-Beverly Consumer Warranty Act breach of express warranty and violation of the Song-Beverly Consumer Warranty Act breach of implied warranty.

On February 5, 2026, the Court denied Defendant's motion for summary judgment, but granted the alternative motion for summary adjudication as to the breach of express warranty claim and denied it as to the breach of implied warranty claim. On April 7, 2026, the Court granted Defendant's motion for judgment on the pleadings as to the breach of implied warranty claim with 20 days' leave to amend. On June 26, 2026, Plaintiff filed the operative First Amended Complaint (FAC) against Defendant and Does 1 to 10, alleging one cause of action for violation of the Song-Beverly Consumer Warranty Act breach of implied warranty.

On May 15, 2026, Defendant moved for summary judgment, or in the alternative, summary adjudication. On August 6, 2026, Plaintiff opposed the Motion. On August 14, 2026, Defendant replied to Plaintiff's Opposition.

LEGAL STANDARD

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute. [Citations.]” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, italics in original and quoting Code Civ. Proc., § 437c, subd. (c).) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings. [Citations.]” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, brackets and internal quotation marks omitted.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established...” (Id. at p. 1520.)

Once the defendant has met that burden, the burden shifts to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion “shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Ibid.; see also Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

PRELIMINARY ISSUES

The Court notes that the operative FAC was not filed with the Court until June 26, 2026, i.e., after Defendant filed this Motion and well after the 20 days’ leave to amend granted in the Court’s April 7, 2026 ruling on Defendant’s motion for judgment on the pleadings. It appears that Plaintiff served the FAC on Defendant on April 27, 2026, but did not file it with the Court until June 26, 2026. (See Morrow Decl., Ex. C; FAC.) Defendant’s Motion was therefore premature. Nevertheless, Defendant’s Motion is directed at the same pleading and there appears to be no evidence of prejudice given Plaintiff’s fully briefed opposition on the merits. As such, the Court may consider the Motion. (See Nat’l Grange of Ord. of Patrons of Husbandry v. California Guild (2017) 17 Cal.App.5th 1130, 1146.) The Court admonishes Plaintiff to be more diligent about filing the necessary documents with the Court going forward.

The Court also notes that Defendant’s Motion misquotes *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297 (*Mexia*). Specifically, Defendant’s Motion reads, “California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the California Uniform Commercial Code: section 2725 of the California Uniform Commercial Code.” (Motion, 7:7-10, bold added.) The word “California” does not appear in that quotation from *Mexia*. (*Mexia*, supra, 174 Cal.App.4th at p. 1305.) Defendant’s Reply also takes a quotation out of context. Specifically, Defendant’s Reply quotes from *Trantafello v. Medical Center of Tarzana* (1986) 182 Cal.App.3d 315 (*Trantafello*) as follows: “The theory for tolling a statute of limitations [...] is that the defendant’s false representations prevent the plaintiff from bringing the action before the period of limitations has run”. (Reply, 3:11-13.) The omitted language indicated by the ellipses is “for intentional concealment”, which significantly affects the meaning of the original quotation. (*Trantafello*, supra, 182 Cal.App.3d at p. 321, fn. 4.) Defendant also improperly attributed the following quotation to *Trantafello*: “an extension of the limitations period under this theory thus requires something more than a mere continuation of the prior nondisclosure which prevents the plaintiff from bringing a timely action.” (Motion, 3:13-15, bold added.) But the words “an extension” are not anywhere to be found in that quotation or in *Trantafello* generally. (See generally, *Trantafello*, supra, 182 Cal.App.3d 315.)

The Court further notes that Defendant's Motion cites an unpublished superior court decision, i.e., *Ali v. Am. Honda Motor Co.*, 2024 Cal. Super. LEXIS 75664. (Reply, 2:24-25.) This is improper. (See *Aguirre v. Amscan Holdings, Inc.* (2015) 234 Cal.App.4th 1290, 1298, fn. 5.) The Court will discuss these matters further with Defendant's counsel at the hearing on this Motion.

DISCUSSION

Summary of Relevant Undisputed Material Facts

The vehicle was delivered to Plaintiff on May 14, 2021, and Defendant issued a warranty in connection with the purchase of the vehicle. (UMF 3.) Plaintiff filed the original Complaint on May 16, 2025. (UMF 5.) Plaintiff presented the vehicle to an authorized repair facility on December 4, 2024, where it remained until December 20, 2024. (Plaintiff's AMF 4.)

Violation of Song-Beverly Consumer Warranty Act – Breach of Implied Warranty

"Unless disclaimed in the manner prescribed by this chapter, every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer's and the retail seller's implied warranty that the goods are merchantable. The retail seller shall have a right of indemnity against the manufacturer in the amount of any liability under this section." (Civ. Code, § 1792.)

Defendant moves for summary judgment, or in the alternative summary adjudication, on the FAC's sole cause of action for breach of the implied warranty of merchantability under the Song-Beverly Consumer Warranty Act. Defendant contends the claim is governed by the four-year limitations period of Commercial Code section 2725, which accrued upon tender of delivery of the subject vehicle on May 14, 2021, and expired on May 14, 2025, two days before the original Complaint was filed on May 16, 2025. Defendant argues that section 2725, subdivision (2), forecloses the delayed-discovery rule and that the narrow future-performance exception does not apply to an implied warranty, which arises by operation of law and contains no promise of future performance. Defendant further asserts that the FAC pleads no facts supporting tolling or equitable estoppel, that the alleged post-sale repair conduct—including a 17-day repair in December 2024—occurred after the implied warranty's one-year prospective period ended and cannot bridge the two-day gap, and that routine repair-facility assurances do not constitute the specific inducement to forbear suit that estoppel requires. Defendant also maintains that the relation-back doctrine cannot revive the claim because the original Complaint was itself untimely when filed.

The Court finds Defendant has met its initial burden of establishing the absence of a triable issue of material fact. The undisputed material facts show that the vehicle was delivered to Plaintiff on May 14, 2021, and that Plaintiff filed this action on May 16, 2025. (UMF 3, 5.) Here, the May 14, 2021 delivery was the date of breach under Commercial Code section 2725, subdivision (2). (Comm. Code, § 2725, subd. (2); *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, 1306.) Accordingly, the statute of limitations for this cause of action would have expired on May 14, 2025, i.e., two days before Plaintiff filed the original Complaint. The burden now shifts to Plaintiff to establish the existence of a triable issue of material fact.

In opposition, Plaintiff argues that Defendant has not established its statute-of-limitations defense as a matter of law because triable issues of fact exist regarding tolling and equitable estoppel. Plaintiff contends that Commercial Code section 2725, subdivision (4), expressly provides that the statute does not alter the law on tolling, so Defendant cannot prevail merely by comparing the delivery date to the filing date. Plaintiff asserts that the vehicle underwent a substantial warranty repair—replacement of the front differential assembly—during which it remained at an authorized repair facility from December 4 to December 20, 2024, and that tolling for more than two of those 17 days would render the action timely. Plaintiff further argues that Defendant's decision to undertake and complete this repair supports a reasonable inference that Plaintiff relied on the warranty process and postponed filing suit, raising a triable issue on equitable estoppel. Plaintiff also maintains that Defendant's relation-back argument depends on the same unresolved issue, because the FAC relates back to a timely original Complaint if tolling or estoppel rendered that pleading timely.

The Court finds Plaintiff has not established the existence of a triable issue of material fact. Plaintiff contends that the express warranty repairs made in December 2024 toll the statute of limitations for the implied warranty claim. Plaintiff has not cited any authority holding that repairs made after the implied warranty expired tolls the statute of limitations for breach of implied warranty claims. The Court finds that there is sufficient authority to support the conclusion that such repairs do not toll the statute of limitation. "Tolling during a period of repairs generally rests upon the same legal basis as does an estoppel to assert the statute of limitations, i.e., reliance by the plaintiff on the words or actions of the defendant that repairs will be made." (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 133-134.) The statute of limitations is tolled during periods the warrantor claims he can honor the warranty by repairing the defect, and attempts to do so. (See Lantzy v. Centex Homes (2003) 31 Cal.4th 363, 372; Aced v. Hobbs-Sesack Plumbing Co. (1961) 55 Cal.2d 573, 585.) Here, the evidence shows that the repairs Plaintiff relies on to toll the statute of limitations occurred between December 4, 2024 and December 20, 2024. It is undisputed that these repairs were made in connection with the express warranty, not the implied warranty. In fact, there is no dispute that the implied warranty expired in May 2022, one year after delivery of the subject vehicle on May 14, 2021. There was no evidence submitted that Defendant made any representations regarding any implied warranty claims. There was also no evidence presented showing that Plaintiff relied on any representations by Defendant with respect to the implied warranty, or even as to any repairs made under the express warranty.

The Court's finding is also consistent with the statutory warranty tolling. Under California Civil Code section 1795.6, a warranty period is automatically tolled from the date the buyer delivers the goods to the manufacturer or seller for "warranty repairs" until the repaired goods are returned or the buyer is notified. (Civ Code § 1795.6.) However, this automatic statutory tolling applies exclusively to "warranty repairs or service". Repairs attempted after the implied warranty has already expired do not qualify as warranty repairs and cannot trigger this statutory tolling. (Civ. Code, §§ 1791.1, 1795.6.)

Based on the foregoing, the Court finds there are no triable issues of material fact and that Defendant is entitled to judgment as a matter of law.

CONCLUSION

The Court GRANTS Defendant General Motors' Motion for Summary Judgment. The Court will sign the proposed Order. The Court directs Defendant to submit a proposed judgment of dismissal for the Court's review and signature within five calendar days of this order.

Defendant is ordered to give notice of the Court's ruling within five calendar days of this order.